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BURUNDI

Human Rights Developments

Negotiations among parties to the civil war in Burundi initially spurred hopes that the six-year-old conflict might end, but, by late October 1999, the discussions had yielded little and both rebels and the Burundian army stepped up military action around Bujumbura, the capital, and in the southeast. As in previous years, all parties to the war massacred civilians, adding several thousand more to a toll that now exceeds one hundred thousand victims. Combatants maimed, raped, or otherwise injured thousands of others and drove tens of thousands from homes which were destroyed. In an effort to deprive rebels of local support, Burundian authorities ordered more than 300,000 people into regroupment camps where they suffered from lack of food, water, and medical attention. Rebels, aiming to end foreign assistance to the local population, warned foreigners to leave Burundi. In early October, rebels killed two U.N. aid workers, along with seven Burundians, thus causing the U.N. to halt activities outside of Bujumbura and withdraw all nonessential staff from Burundi. During the year, the war in Burundi became more closely linked to conflicts in the Democratic Republic of the Congo (DRC), where Burundians fought on both sides, and in Rwanda. Rebels against the Rwandan government reportedly joined Burundian rebels in their attacks on Bujumbura and elsewhere.

The Tutsi minority, dominant for centuries, had rebuffed efforts by the Hutu majority to participate more fully in power, whether through political means or by force. In the worst such case in 1972, the Tutsi-dominated army massacred as many as 200,000 Hutu following Hutu attacks on Tutsi.

In 1993, Burundians elected their first Hutu president, Melchior Ndadaye. In what appeared a model transition, the Tutsi Major Pierre Buyoya ceded power, but in October 1993, Tutsi soldiers murdered Ndadaye and other high officials. Hutu in many communities, sometimes directed by local officials, massacred thousands of Tutsi. The army slaughtered thousands of Hutu, sometimes in places where no Tutsi had been killed.

Under heavy international pressure, the military restored civilian rule, but the government failed to counter violence by Tutsi militia in the city and attacks by predominantly Hutu opposition groups in the countryside. In 1996, Buyoya took power again, pledging to restore order. The surrounding nations imposed an embargo on Burundi, seeking to force Buyoya to restore constitutional government and to negotiate with insurgents. With a "partnership" established between Buyoya and elements of the internal opposition and with negotiations under way, organizers of the embargo ended the restriction on trade at the start of 1999, but the badly damaged economy failed to revive.

Under Buyoya's direction, authorities forced hundreds of thousands into "regroupment" camps in late 1996 and 1997. After strong international protests, they dispersed most of the camps by late 1998, but with the increased combat in mid-1999, authorities once again insisted on regroupment in regions surrounding the capital and in the southeast. Similarly, in September 1999, they called for increased reliance on local self-defense forces, in operation for several years, and they stepped up the distribution of firearms to civilians, mostly Tutsi civilians.

The two strongest groups of insurgents, the National Council for the Defense of Democracy- Forces for the Defense of Democracy (CNDD-FDD) and the Party for the Liberation of the Hutu People (PALIPEHUTU), have slain thousands of civilians, both Tutsi and other Hutu in struggles with each

other as well as with government forces. Originally based largely in the DRC, many rebels left following disruption of their bases during the Congo war and resumed attacks from new bases in Tanzania.

Throughout the year, soldiers attacked civilians in reprisal for attacks by rebels. In early November 1998, government troops killed at least 101 and perhaps many more in Mutambu commune, province of Bujumbura-rurale, after rebels had killed five persons in the area. Soon after, government soldiers killed dozens of civilians at Muresi in Makamba province and at Mubone in Kabezi commune in January.

Several weeks later, rebels struck in the province of Bubanza, killing twenty-four and wounding twenty, and soon after killed twenty-five persons in a displaced persons camp at Rumonge, south of Bujumbura. Rebels also increased their attacks in the southern provinces of Bururi and Makamba. In mid-January 1999, rebels killed at least twenty-two civilians and burned more than 400 houses in Kibago and Mabanda communes.

Attacks diminished in late January and February, but resumed in late March, with new violence in the east, particularly in the province of Ruyigi. In June and July, rebels killed civilians more frequently on the roads around the capital. In one incident, eighteen civilians perished after a bus was attacked and burned, reportedly by PALIPEHUTU insurgents. Rebels also hit a military barracks near Buyoya's residence, thus demonstrating the potential to strike at crucial targets.

In mid-August, government soldiers killed 147 civilians in one place and seventy-four soon after in another location, both in Bujumbura-rurale. At the end of August, rebels killed thirty-eight civilians and the army retaliated by slaying twenty others. The next week, rebels killed another fifteen people south of the capital and soon after killed thirteen more in Makamba, in southeastern Burundi.

Divisions among the contenders, sometimes due to policy differences, sometimes due to personal rivalries, produced the unwieldy number of eighteen different parties to the peace negotiations. Factions of the important Front for Democracy in Burundi (FRODEBU) and Party for Union, Progress and Nation (UPRONA) disapproved of the talks and a number of small radical Tutsi parties challenged concessions made by the government in the process. The wings of CNDD-FDD and PALIPEHUTU political party with the greatest military strength did not participate in the negotiations, although the government engaged in less formal exchanges with them. Foreign donors, who had paid more than \$2 million for the talks, as well as many Burundians were disappointed at the lack of progress by year's end. They criticized politicians for delays which gave them additional per diem payments while costing victims their lives. The death in October of former Tanzanian president Julius Nyerere, who had moderated the talks, further clouded prospects for a negotiated settlement.

Most Burundians had suffered from some kind of ethnically-motivated attack or had family members who had so suffered. Extremists on each side were quick to assign guilt to everyone in the other ethnic group, accusing them of genocide, a term charged with special importance since the 1994 genocide in neighboring Rwanda. Some 10,000 Burundians were in jail, most of them accused of or convicted of crimes against Tutsi in 1993 or since. The judicial system was heavily dominated by Tutsi, which helped to explain why few Tutsi had been arrested for crimes against Hutu and why Hutu did not expect justice in the current situation. Approximately five hundred persons were tried in the last year, reducing somewhat the backlog of cases that had overwhelmed the judicial system, but 75 percent of detainees had yet to be tried.

Prisoners were housed in facilities meant to accommodate only about one third the number of present occupants. In addition to severe overcrowding, prisoners suffered from ill-treatment and lack of food and medical care, such that imprisonment could in many cases be described as inhumane and life-threatening.

In the past, most trials fell short of international standards of due process. But the presence of U.N. human rights observers at some 60 percent of the trials and the more frequent appearance of witnesses, organized with the help of the human rights group Iteka, improved the quality of the proceedings. The nongovernmental organization Avocats sans Frontieres provided foreign attorneys to assist the small number of Burundian lawyers available to defend the accused.

In the most publicized case of inadequate justice this year, a court in May acquitted thirty-eight persons of charges of having participated in the murder of President Ndadaye. Those acquitted were all important persons or high ranking officers, while five junior officers and soldiers were found guilty and sentenced to death. Seventy-two other persons were condemned to between one and twenty years in prison. In light of the substantial evidence against some of those acquitted, the prosecutor announced that he would appeal the decision.

In June, the legislature adopted changes to the penal code permitting lawyers to consult with detained persons before their first appearance in court and imposing new measures to prevent ill-treatment of detainees as well as lengthy and arbitrary detentions.

Under international pressure, military authorities investigated a few of the worst massacres reportedly committed by soldiers, but apparently in only one case were two soldiers arrested. They had not been brought to trial. In another case, a soldier was arrested for killing at least six and perhaps as many as thirteen civilians at a displaced camp in October.

Authorities kept tight control over the press. In June they arrested the director of the independent news agency Azania and they detained the head of New Press for twelve days. In September, the defense minister reportedly told soldiers to consider journalists as enemies who were supporting the rebels. After international protest, he denied having made the statement.

Defending Human Rights

Local human rights organizations continued to operate without apparent obstruction. Iteka, the oldest and best established, published information on military abuses, criticized proposed legislation to limit the freedom of association, and alerted the international community to the danger of imminent and large-scale violence after the increase of combat in July and August. The Burundian Association for the Defense of Prisoners continued effective work on improving prison conditions.

The United Nations High Commissioner for Human Rights maintained a small group of observers to assist the judiciary and visit prisons. They also monitored violations of international humanitarian law by parties to the conflict.

The Role of the International Community

The international community provided continuing humanitarian assistance to Burundi as well as diplomatic and financial support for the negotiations. Most donors cut all development assistance at the time of the embargo and promised its resumption only after negotiations had been successfully concluded, a position reiterated in September. In October, however, France announced a grant of about \$3 million for reconstruction in war-torn areas and for programs for human rights and justice. Soon after the World Bank pledged \$12 million to further reconstruction. During the year, the U.S. and other donor governments, the E.U., and Secretary-General Kofi Annan denounced violence against civilians and the regroupment policy and called for investigations into the worst massacres. In September, the E.U. urged the U.N. human rights operation to assist in investigating the August massacres reportedly perpetrated by Burundian soldiers and the U.S. called on the Burundian government to permit investigations by local and international human rights investigators into these killings.

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